

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC-2691

KALMAN HARTIG and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

**ORDER ON MOTION FOR FINAL JUDGMENT FOR DAMAGES AND JUDICIAL SALE,
ORDER ON MOTION FOR RELEASE OF FUNDS IN REGISTRY OF COURT, ORDER
ON MOTION TO CONTINUE HEARING ON MOTION FOR FINAL JUDGMENT FOR
FINAL JUDGMENT FOR DAMAGES AND JUDICIAL SALE AND ON DEFENDANT
KALMAN HARTIG'S MOTION TO ADD COUNTERCLAIM AND ORDER SETTING
EVIDENTIARY HEARING**

THIS CAUSE, having come on to be heard on September 11, 2025 on the above motions. All appearances were via Zoom. Plaintiff appeared through counsel. Defendant appeared pro se.

The court considered the motions of the Defendant and considered argument by both parties, and considered the record and prior orders in this cause. Based upon finding that the determination of the *amount* of damages and the *amount* of attorney fees must be made as a result of evidentiary findings, the Court grants the motion to continue the Motion for Final Judgment for Damages and Judicial Sale until November 18, 2025 at 9:30 a.m. (or as soon thereafter as it may be heard), for 45 minutes, to be conducted via zoom. Forte vs. All County Towing, Inc., 336 So.3d 316 (Fla. 4 DCA 2022).

Defendant's sua sponte Motion to File a Counterclaim in this cause is denied as untimely, Fla. R. Civ. P. 1.190; however, this shall not be construed to prevent the Defendant from bringing a separate lawsuit based upon another not-adjudicated cause of action between the parties.

The Court finds that the funds in the Registry of the Court shall be paid to the Plaintiff. All payments made to the Plaintiff shall be credited to the Defendant from the damages of the Plaintiff subsequently ordered by this Court.

The Court Directs the Clerk of Court to pay to the Plaintiff the funds paid by Defendants into the Registry of the Court less Clerk of Court costs in the above styled cause of action, by mail, to:

Colonial Manor MHC Holdings, LLC- Main Office
900 9th Ave East
Palmetto, FL 34221

DONE AND ORDERED at in the Manatee County Judicial Center, Bradenton, Manatee County,
Florida, this _____ day of _____, 2025.



eSigned by HEATHER DOYLE, County Judge 09/16/2025 13:56:18 mHvUAbPz

COUNTY JUDGE

Copies:

KALMAN HARTIG AND ANY UNKNOWN TENANT(s), sonicgenesis@gmail.com

WILLIAM C. PRICE, III, ESQUIRE, pleadings@wcpricelaw.com